

24SMCV04108 24SMCV04108

County: los-angeles

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Case Number: 24SMCV04108 Hearing Date: September 17, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

17, 2026

CASE NUMBER

24SMCV04108

MOTION

Motion

for Summary Judgment/Summary Adjudication

MOVING PARTY

Defendant Dennis Howard Wilen

OPPOSING PARTY

Plaintiff

Nadia Heshmati

MOVING PAPERS:

Notice

of Motion and Motion for Summary Judgment/Summary Adjudication; Memorandum
of Points and Authorities

Compendium

of Exhibits 1 through 19

Separate

Statement of Undisputed Facts

OPPOSITION PAPERS:

Opposition to Motion for Summary
Judgment/Summary Adjudication

Compendium of Evidence Exhibits
1-30

Ray Willfor's Declaration in
Support of Plaintiff Nadia Heshmati's Opposition

Notice of Lodging Certified
Reporter's Transcript

Doctor Radfar's Declaration in
Support of Plaintiff's Opposition

Nadia Heshmati's Declaration in
Support of Her Opposition

Evidentiary Objections

Separate Statement in Opposition

Request for Judicial Notice

Plaintiff Heshmati's Supplemental
Declaration

REPLY PAPERS:

Reply
to Plaintiff's Opposition to Motion for Summary Judgment/Summary
Adjudication

Separate
Statement in Reply

Evidentiary
Objections

BACKGROUND

This case arises from allegations of cyberbullying.

On August 26, 2024, Plaintiff Nadia Heshmati ("Plaintiff" or
"Heshmati") filed suit against Defendants Dennis Howard Wilen ("Wilen" or
"Defendant") and Michael Carbajal ("Carbajal") alleging six causes of action
for (1) defamation per se; (2) defamation per quod libel; (3) intentional
infliction of emotional distress; (4) invasion of privacy (CC 1708.85); (5)
intentional interference with economic advantage; and (6) assault and battery.

On January 30, 2025, Plaintiff
dismissed Carbajal with prejudice.

Wilen now moves for summary judgment, or in the alternative summary
adjudication of the following issues:

ISSUE 1. Defendant Wilen is entitled to summary
adjudication on the First, Second, Third, Fourth, and Fifth Causes of Action
because Defendant did not author, create, post, or cause to be posted the
content described in the complaint.

ISSUE 2. Defendant Wilen is entitled to summary
adjudication on the Sixth Cause of Action for Assault and Battery because
Defendant did not attend the events alleged in paragraphs 98 through 100 of the

complaint and did not touch Plaintiff, or pull a knife on Plaintiff, at the parking lot as alleged in paragraph 101.

ISSUE 3. Defendant Wilen is entitled to summary adjudication on the Third Cause of Action for Intentional Infliction of Emotional Distress because Defendant did not engage in the alleged conduct and the conduct alleged does not constitute extreme and outrageous conduct.

ISSUE 4. Defendant Wilen is entitled to summary judgment because Plaintiff's claims are barred by claim and issue preclusion, which is pled as his twenty-eighth affirmative defense, the issues having been litigated and decided in Heshmati v. Wilen, Los Angeles Superior Court Case No. 24STRO00564.

Plaintiff opposes the motion and Wilen replies.

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of the following:

1)

A certified copy of the minute order of the Defendant's motion to Strike AKA Antislapp on January 15, 2025, which was denied by this honorable Court.

2)

A certified copy of the minute order of the Defendant's motion for Judgement on the Pleadings on June 02, 2025, which was denied by this honorable Court.

3)

A certified copy of the minute order of the Defendant's motion (Second one) to declare the Plaintiff " Vexatious litigant" on April 30, 2026, which was denied by this honorable Court.

4)

A certified copy of the Plaintiff's opposition to Defendant Wilen's Antislapp (Denied), declaration of Nadia Heshmati, attorney Randy Chang and Ray Willfor on January 02, 2025.

5)

A certified copy of the Plaintiff's verified Complaint for damages and injunctive relief and demand for jury trial, filed on August 24, 2024.

Judicial notice may be taken of records of any court in this state.

(Evid. Code, § 452, subd. (d)(1).)

Because the above documents are all part of the Court's record for this case, the Court may take judicial notice of them. (Ibid.) However, "while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files. Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof." (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 [cleaned up].)

Accordingly, the Court takes judicial notice of the existence, filing, and legal consequences of the above documents filed in this matter as court records, but not the truth of the allegations or other hearsay statements contained therein.

EVIDENTIARY OBJECTIONS

The Court rules as follows with respect to Plaintiff's evidentiary objections:

Exhibit 1: Overruled

Exhibit 2: Overruled

Exhibit 3: Overruled

Exhibits 4-9: Overruled

Exhibit 10: Overruled

Exhibit 11: Overruled

Exhibit 12: Overruled

Exhibit 13: Overruled

Exhibit 14: Overruled

Exhibit 15: Overruled

Exhibit 16: Overruled

Exhibit 17: Overruled

Exhibit 18: Overruled

Exhibit 19: Overruled

The

Court rules as follows with respect to Wilen's evidentiary objections:

1. Sustained

2. Sustained

3. Sustained

4. Sustained

5. Sustained

6. Sustained

7. Sustained

8. Overruled as to "I do NOT know this Wilen Character" Sustained otherwise.

9. Sustained

10. Sustained

11. Sustained

12. Sustained

13. Sustained

14. Sustained

15. Sustained

16. Sustained

17. Sustained

18. Sustained

19. Sustained

20. Sustained

21. Sustained

22. Sustained

23. Sustained as to "Wilen and Carbajal Commit Elder abuse, swatting and elder financial abuse" Overruled as to "I had included my family too [sic] be named as PROTECTED PARTIES against WILEN in my CHRO against him. They Include Dr. Radfar"

24. Sustained

25. Sustained

26. Sustained as to "by Wilen." Overruled otherwise.

27. Sustained

28. Sustained – foundation

29. Sustained – foundation

30. Sustained – foundation/personal knowledge

31. Sustained

32. Sustained – relevance

33. Sustained

34. Sustained

35. Sustained

36. Overruled as to “There is a Global settlement
agreement between the Aaronsons and myself” Sustained otherwise

37. Sustained

38. Sustained

39. Sustained

40. Sustained

41. Sustained

42. Sustained

43. Sustained

44. Sustained

45. Sustained

46. Sustained

47. Sustained

48. Sustained

49. Sustained

50. Sustained

51. Sustained

52. Sustained

53. Sustained

54. Sustained

55. Sustained

56. Sustained

57. Sustained – relevance

58. Sustained

59. Sustained – relevance

60. Sustained

61. Sustained

62. Sustained

63. Sustained

64. Sustained

65. Sustained

66. Sustained

67. Sustained

68. Sustained

69. Sustained

70. Sustained

71. Sustained – authentication

72. Sustained

73. Sustained

74. Overruled

75. Overruled as to “That is how the plaintiff met [...] defendant Wilen. She called the police and was provided an incident number.” Sustained otherwise (including as to “this mentally deranged violent person”)

76. Sustained

77. Sustained – foundation

78. Sustained

79. Sustained

80. Sustained

81. Sustained

82. Sustained

83. Sustained

84. Sustained

85. Sustained

86. Sustained

87. Sustained

88. Sustained

89. Sustained as to "A true copy of those photos taken by the defendant Wilen and his Goonies like Richard S. Klein are appended hereinto and Marked as Exhibit G."
Overruled otherwise.

90. Sustained

91. Sustained

92. Sustained

93. Sustained as to "due to the defendant's illegal and criminal actions against her since 2021." Overruled otherwise.

94. Sustained

95. Overruled

96. Overruled

97. Overruled

98. Overruled

99. Overruled

100.
Overruled

101.
Sustained

102.
Sustained

103.
Sustained

104.
Sustained

105.
Sustained

106.
Sustained

107.
Sustained

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Sustained

109.
Sustained

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Sustained

111.
Sustained

112.
Sustained

113.
Sustained

114.
Sustained

115.
Sustained

116.

Sustained

117.

Sustained

118.

Overruled

119.

Sustained

120.

Sustained

121.

Sustained

122.

Sustained

123.

Sustained

124.

Sustained

125.

Sustained

126.

Sustained

127.

Sustained

128.

Sustained

129.

Sustained

130.

Sustained

131.

Sustained

132.

Overruled

133.

Overruled

as to "I reside with my girl friend Nadia Heshmati next door to Attorney in Proper Arthur Aaronson and his wife till they moved out on or about November of 2021." Sustained otherwise.

134.

Sustained

135.

Sustained

136.

Sustained

137.

Sustained

138.

Sustained

139.

Sustained

140.

Sustained

141.

Sustained

142.

Sustained

143.

Sustained

144.

Sustained

145.

Sustained

146.

Overruled

as to "I fear for my girl friend's and I safety, well being and life and her family in Florida as well" Sustained otherwise

147.

Sustained

148.

Sustained

149.

Sustained

150.

Sustained

151.

Overruled

as to "I have personally witnessed Dennis Wilen driving by in a black sedan and beeping his horn at all hours of the night."
Sustained otherwise.

152.

Overruled

as to "Wilen drove by our home multiple times and beeped his horn. He was driving a four door black car." Sustained otherwise.

153.

Sustained

154.

Overruled

155.

Sustained

156.

Overruled

157.

Sustained

158.

Sustained

159.

Sustained

160.

Sustained

161.

Sustained

162.

Sustained

163.

Sustained

164.

Sustained

as to "Wilen also follows my girl friend around the plaza at 2323 Roscomare Road" Overruled otherwise

165.

Sustained

166.

Overruled

167.

Sustained

168.

Sustained

169.

Sustained

170.

Sustained

171.

Overruled

172.

Overruled

as to "Till this day I fear for my safety and life as well as my girl friend's" Sustained otherwise.

173.

Overruled

174.

Sustained

175.

Sustained

176.

Sustained

177.

Sustained

178.

Sustained

179.

Sustained

180.

Sustained

181.

Sustained

182.

Sustained

as to "due to those nude videos that were created." Overruled otherwise.

183.

Sustained

184.

Sustained

as to "She is a psychotherapist by education and these postings will damage her life forever." Overruled otherwise.

185.

Sustained

186.

Sustained

187.

Overruled

188.

Sustained

189.

Sustained

190.

Sustained

191.

Sustained

192.

Sustained

193.

Sustained

194.

Sustained

195.

Sustained

196.

Sustained

197.

Sustained

198.

Sustained

199.

Sustained

200.

Sustained

201.

Sustained

202.

Sustained

203.

Sustained

204.

Sustained

205.

Sustained

206.

Sustained

207.

Sustained

208.

Sustained

209.

Sustained

210.

Sustained

211.

Sustained

212.

Sustained

213.

Sustained

214.

Sustained

215.

Sustained

216.

Sustained

217.

Sustained

218.

Sustained

219.

Sustained

220.

Sustained

221.

Sustained

222.

Sustained

223.

Sustained

224.

Sustained

225.

Sustained

The Court declines to rule on the remainder of Wilen's "objections" to Plaintiff's separate statement, as the separate statement, and the contents therein, are not evidence.

LEGAL STANDARDS – MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.]
There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the

party opposing the motion in accordance with the applicable standard of proof.”

¿(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850

(hereafter Aguilar).) ¿[T]he party moving for summary judgment bears an

initial burden of production to make a prima facie showing of the nonexistence

of any triable issue of material fact; if he carries his burden of production,

he causes a shift, and the opposing party is then subjected to a burden of

production of his own to make a prima facie showing of the existence of a

triable issue of material fact.” ¿(Ibid.; Smith v. Wells Fargo Bank,

N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar

apply to summary adjudication motions].)

Further, “the trial court

may not weigh the evidence in the manner of a factfinder to determine whose

version is more likely true. Nor may the

trial court grant summary judgment based on the court's evaluation of credibility.” (Aguilar, supra, 25 Cal.4th. at p. 840

[cleaned up]; see also Weiss v. People ex rel. Department of Transportation

(2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or

summary adjudication may not weigh the evidence but must instead view it in the

light most favorable to the opposing party and draw all reasonable inferences

in favor of that party”].)

A party may move for

summary adjudication as to one or more causes of action, affirmative defenses,

claims for damages, or issues of duty if that party contends that there is no

merit to the cause of action, defense, or claim for damages, or if the party

contends that there is no duty owed. (See Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication shall be

granted only if it completely disposes of a cause of action, an affirmative

defense, a claim for damages, or an issue of duty.” (Ibid.) A cause of action has no merit if: (1) one or

more elements of the cause of action cannot be separately established, even if

that element is separately pleaded, or (2) a defendant establishes an

affirmative defense to that cause of action.

(See Code Civ. Proc., §

437c, subd. (n); Union Bank v. Superior

Court (1995) 31 Cal.App.4th 573, 583.)

Once the defendant has shown that a cause of action has no merit, the

burden shifts to the plaintiff to show that a triable issue of material fact

exists as to that cause of action. (See Code Civ. Proc., § 437c, subd. (o)(2); Union Bank v. Superior Court, supra, 31

Cal.App.4th at p.

583.) Additionally, in line with Aguilar,

“[o]n a motion for summary adjudication, the trial court has no discretion to

exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted.” (Fisherman's Wharf Bay Cruise Corp. v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

DISCUSSION

1. ISSUE 1 – WHETHER DEFENDANT WILEN AUTHORED, CREATED, POSTED, OR CAUSED TO BE POSTED THE CONTENT DESCRIBED IN THE COMPLAINT

Wilen first argues that Plaintiff's first, second, third, fourth, and fifth causes of action fail because Wilen did not author, create, post, or cause to be posted the content described in the Complaint.

“The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues and to frame the outer measure of materiality in a summary judgment proceeding. As our Supreme Court has explained it: The materiality of a disputed fact is

measured by the pleadings, which set the boundaries of the issues to be resolved at summary judgment. Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff's theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Hutton

v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493 [cleaned up]; see also Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258 [“The complaint limits the issues to be addressed at the motion for summary judgment. The rationale is clear: It is the allegations in the complaint to which the summary judgment motion must respond”].)

Here, the first through fourth causes of action are premised upon the alleged false and defamatory deepfake “revenge porn” posted online by Wilen, in part:

57.

Defendants willfully and intentionally published disgusting and false information about the plaintiff as described above. [First Cause of Action for Defamation Per Se]

65.

Defendants willfully and intentionally published disgusting and false information about the plaintiff as described above. [Second Cause of Action for Defamation Per Quod Libel]

73. The

postings were outrageous including calling Heshmati a child molester, fake pornographic videos and other offensive ridiculous assertions. [Third Cause of Action for Intentional Infliction of Emotional Distress, alleging the “extreme and outrageous” conduct was the online postings]

82.

Defendants’ published intimate body part purportedly to be Plaintiff as in provided Exhibit A. [Fourth Cause of Action for Invasion of Privacy premised upon the images allegedly posted online]

The

Fifth cause of action for Intentional Interference with Economic Advantage, however, is not premised upon defamatory online postings, but rather is premised upon allegations that Defendants “sent e-mails, letters and contacted the plaintiff’s social and business circles such as Beverly [H]ills chamber of commerce, Norwegian Chamber of commerce, Swedish chamber of commerce, the Finnish consulate, the Finlandia foundation and other organizations accusing the plaintiff of delusional and inflammatory lies intentional destroying her business relationships with them.”

(Complaint ¶ 10; see also ¶ 87.)

a. Defendant Wilen’s Evidence

In support, Wilen advances his own declaration, which provides as follows:

4. Other

than the video I recorded of Plaintiff in a public place and posted to the Nextdoor community website, and reposted years later to Threads, which is Exhibit 12 and which I describe below, I did not author, create, post, upload, publish, or cause to be posted any of the photographs, videos, social media posts, online publications, or other content that forms the basis of the complaint. Specifically, I did not post any of the altered content. I am not one of the anonymous posters alleged in the complaint.

5. I did

not alter, edit, manipulate, or create any so-called “deep fake” image or video of Plaintiff, and I did not place Plaintiff’s likeness onto any other image or body.

6. I did

not direct, request, pay, encourage, or agree with any other person to author, create, post, or publish any such content. I was not hired by the Aaronsons, my attorneys are not paid by the Aaronsons, I am not part of any conspiracy, and I did not act in concert with Michael Carbajal, Arthur Aaronson, Cynthia Aaronson, or any other person to create, post, or publish any such content.

7. I do

not know Michael Carbajal. He telephoned me in 2024, around the time the restraining order cases were filed. I told him to contact Melvin Teitelbaum, Esq., the attorney who was then defending me in the restraining order case filed by Nadia Heshmati against me.

8. I am

not being paid by the Aaronsons, and my attorney is not being paid by them.

9. My

attorney, Anita Brenner, agreed to take this case pro bono through the initial challenges, due to the antisemitic postings. Since then I have not been able to pay her due to my limited financial circumstances.

10. I did

not act for the purpose of harassing, defaming, threatening, or causing harm to Plaintiff.

11. I am

79 years old, and I will turn 80 by the time this motion is heard. I have had cancer twice, and I have cardiac issues. I am semi-retired as a journalist and web publisher. I depend on Social Security, Medicare, a rent-controlled apartment, and several loyal and committed clients. Plaintiff’s actions have negatively impacted my health. My telephone number and email address have been public for many years, and I conduct most of my business online.

12. My

first encounter with Plaintiff was not in person. It was online, in the summer of 2021, on the local community website Nextdoor, which functions as an online neighborhood watch. In the summer of 2021, Plaintiff posted on Nextdoor that our United States mail carrier, Annette Lanza, was stealing mail. I did not know Plaintiff. I did know Ms. Lanza, who was a beloved part of our neighborhood, an African American woman, and a 30-year veteran of the post office who had delivered our mail for years. Ms. Lanza told me that Plaintiff had chased her postal truck and directed a racial slur at her. I then logged on to Nextdoor and posted in defense of Ms. Lanza.

13. As a result of my Nextdoor post, I had unknowingly stepped into a long-standing dispute between Plaintiff and her then-neighbors, Arthur and Cynthia Aaronson. I did not know the Aaronsons. After my post, Cynthia Aaronson sent me a text message. I later walked up the street to see where they lived and saw Plaintiff in front of her house holding a power tool, either a chainsaw or a leaf blower. I said, "You must be Nadia," and Plaintiff made a threatening gesture with the power tool, and I immediately left.

14. A week or two later, while I was walking, a delivery man was trying to push a hand truck loaded with large bottles of water across the road, and his vehicle was blocking one lane. I saw a car speeding down the street. I could not see who was driving, and I was not then familiar with Plaintiff's car. I raised my hand to try to slow the car because I was concerned it would hit the delivery man. The driver was Plaintiff. She rolled down her window and yelled an antisemitic slur at me. Since then, I have tried to avoid Plaintiff, and I stopped walking north on Roscomare in the direction of her house.

15. Plaintiff has threatened to kill me on three occasions, twice from her car on the street and once in the parking lot of Arturo's lunch truck. She has left profane voicemails and emails and has posted a massive volume of ugly material about me online. Two of the voicemails I received from her are Exhibits 15 and 16. She has disclosed my Social Security number, home address, and financial history online, and she has posted the names of my family. She has accused me of being a pedophile and a pornographer and has made other false statements, many using antisemitic language and imagery. She has reported me to the Los Angeles Police Department and the FBI. Two FBI agents came to my apartment and advised me to obtain a restraining order against Plaintiff. Plaintiff has come to my

apartment, has contacted my landlord in an effort to have me evicted, and has twice appeared on our building's security camera attempting to buzz her way into the building.

16. I am

informed and believe that the Yelp response to my attorney's subpoena showed that Plaintiff created a fake Yelp account using the initials "D.W." and the first name "David," which impersonated me. The account used my photograph as its profile photo and left numerous negative reviews of various people, including my attorney. I am informed and believe that the account has since been deleted by Yelp.

17. After

Plaintiff threatened to kill me for the third time, I gave her the finger. I regret doing so. Plaintiff took a photograph of that gesture, and she has repeatedly posted that photograph on Facebook, often captioned with remarks about Jews, my home address, and other statements.

18. Up

until June 19, 2023, despite Plaintiff's frequent yelling, driving by, honking, screaming, and death threats, I had no physical evidence of how she was stalking and harassing me, only my notes and emails. I decided that, when I went on my daily walk to the food truck, I would set my iPhone to record video before I left the house, so that I could immediately begin recording. On the morning of June 19, 2023, I was prepared. In a public space and in front of witnesses, I visibly began recording Plaintiff and asked her why she was doing this to me.

19.

Exhibit 12 is a true copy of the video I recorded that on June 19, 2023 at approximately 11:57 a.m.

20. I

also posted Exhibit 12 to the Nextdoor community website.

21. Just

before I began recording Exhibit 12, on June 19, 2023, I took a still photograph of Plaintiff, a true copy of which is Exhibit 13.

22. I

have reviewed Nadia Heshmati's complaint in the present case. The complaint

alleges in paragraph 1 that Plaintiff's head was cut and pasted over the naked bodies of other women and posted online, and that her home address and telephone numbers were posted on various websites. I did not create, edit, post, or cause to be posted any such image, and I did not post Plaintiff's home address or telephone numbers anywhere.

23. The

complaint alleges in paragraph 2 that a video titled "HESHMATI FAMILY OF GOAT-HERDING CHILD MOLESTERS" was posted. I did not create, post, or cause to be posted that video or its title.

24. The

complaint alleges in paragraphs 3 and 4 that entries were posted on Ripoff Report under the username Esquival on February 26, 2024 and March 2, 2024. I did not author, post, or cause to be posted those entries, and I have never used the username Esquival.

25. The

complaint alleges in paragraphs 5 and 7 that videos were posted accusing Plaintiff of being a registered sex offender and child molester and depicting her as having been born from her mother in the form of a cockroach. I did not create, post, or cause to be posted any such video.

26. The

complaint alleges in paragraphs 6 and 8 that a fake Facebook page and fake profiles were created in Plaintiff's name containing pornographic and deep fake videos made with artificial intelligence. I did not create that page or those profiles, and I did not create, post, or cause to be posted any such video.

27. The

complaint alleges in paragraph 9 that fake profiles published Plaintiff's home address and private telephone number and labeled her with various epithets. I did not create those profiles, and I did not publish Plaintiff's address, telephone number, or any such label.

28. The

complaint alleges in paragraph 10, and again in paragraphs 87 and 88, that emails and letters were sent to the Beverly Hills Chamber of Commerce, the Norwegian Chamber of Commerce, the Swedish Chamber of Commerce, the Finnish Consulate, the Finlandia Foundation, and other organizations. I did not send

any such email or letter to any of those organizations. I am not a member of the Beverly Hills Chamber of Commerce, the Norwegian Chamber of Commerce, the Swedish Chamber of Commerce, the Finnish Consulate, or the Finlandia Foundation. I have no interest in those groups.

29. The

complaint alleges in paragraph 11 that Plaintiff's family in another state was targeted, that credit cards were fraudulently obtained in the names of her elderly family members in approximately July 2023, and that a false report was made to the Florida police. I did not target Plaintiff's family, I did not obtain or use any credit card in their names, and I did not make any report to the police concerning them.

30. The

complaint alleges in paragraphs 12 and 43 that Plaintiff received unwanted telephone calls and that her home was approached at night, that garbage, cookies, and dead animals were left, and that profanities were yelled and horns honked. I did not make those calls and did not engage in any of that conduct at Plaintiff's home.

31. The

complaint alleges in paragraph 41 that I followed, stalked, and recorded Plaintiff, that my recordings ended up on the Internet, and that Plaintiff's head was cropped over a naked body and posted under various usernames. As described above, I took the video marked as Exhibit 12 and posted it to the Nextdoor community website. I did not stalk Plaintiff. I did not edit, manipulate, or alter Exhibit 12, Exhibit 13, or any other recording; I did not crop Plaintiff's image onto any other body; and apart from posting Exhibit 12 to Nextdoor, and reposting years later to Threads in a reply, I did not post Exhibit 12, Exhibit 13, or any recording of Plaintiff on the Internet, including on YouTube, Ripoff Report, or Facebook, or cause any of them to be posted. [...]

34. The

complaint alleges in paragraph 42 that I am a web designer who created fake user identities, a Facebook account, and other accounts in order to defame and harass Plaintiff. Although I build websites for some customers, and have also worked as a writer or journalist, I did not create any fake user identity, Facebook account, or other account concerning Plaintiff.

35. The complaint alleges in paragraph 44, and in paragraphs 45 through 54, that numerous online publications were posted under usernames including AlertNadia86842, Nadia Heshmati, Tehran, Euroasian, Esquivel, Big Bottom, SandMoanCity, StinkMaster, Marti, Hubbins, Isfahan, Skipper, Luke Tarquin, V Savage, Shearer, Artem Yancy, and Nadia Heshmatwo. These include publications the complaint alleges were submitted on February 5, 2024 (paragraph 50), February 11, 2024 (paragraph 49), February 27, 2024 (paragraph 48), March 1, 2024 (paragraph 47), March 3, 2024 (paragraph 46), and March 5, 2024 (paragraph 45). I did not author, post, or cause to be posted any of those publications, and I have never used any of those usernames.

36. As to the First and Second Causes of Action for defamation (paragraphs 56 through 71), I did not publish any false statement of or concerning Plaintiff as alleged in that cause of action, and not at any time since.

37. As to the Third Cause of Action for intentional infliction of emotional distress (paragraphs 72 through 79), I did not engage in the conduct alleged and did not act with any intent to cause Plaintiff emotional distress.

38. As to the Fourth Cause of Action for invasion of privacy under Civil Code section 1708.85 (paragraphs 80 through 85), I did not photograph, create, post, or distribute any image of any intimate body part of Plaintiff.

39. As to the Fifth Cause of Action for intentional interference with prospective economic advantage (paragraphs 86 through 96), I did not contact any of the organizations identified in the complaint and did not interfere with any economic relationship of Plaintiff.

43. In the case entitled Dennis Wilen v. Nadia Heshmati, Case No. 24STRO02204 (Exhibit 10), I represented myself. I produced discovery to Plaintiff in that case, as reflected in the emails collectively attached as Exhibit 14. Exhibit 14 contains true copies of those emails. These shows that I served discovery on Plaintiff on or before June 11, 2024 and the discovery included photographs. The email address persiancat001 is Plaintiff's email address, and Exhibit 14

also shows Plaintiff's response.

44.

Exhibit 10 is a true and correct copy of the Petition for Civil Harassment Restraining Orders (Judicial Council Form CH-100) that I filed against Plaintiff in Los Angeles Superior Court Case No. 24STRO02204 on March 28, 2024. I filed that petition after FBI agents advised me to obtain a restraining order against Plaintiff. The photographs included in that Petition, consisting of the door-camera images and the photograph taken on Roscomare Road, were submitted by me as part of that public court filing on March 28, 2024.

45. The

photographs described in the preceding paragraph were placed in the public record of Case No. 24STRO02204 on March 28, 2024, and were thereafter available to any person who accessed that court file. I did not give any of those photographs to any person for the purpose of posting them online, and I did not post them online myself.

46.

Exhibit 12 is a true and correct copy of the video I recorded of Plaintiff on June 19, 2023 at approximately 11:57 a.m., in the parking lot of Arturo's lunch truck, and which I posted to the Nextdoor community website, as described above. Because Exhibit 12 is a video, I am informed that a copy will be lodged on a flash drive delivered to the Court's chambers.

47.

Exhibit 13 is a true and correct copy of the still photograph I took of Plaintiff in that same parking lot just before I recorded Exhibit 12, on June 19, 2023.

48.

Exhibit 14 is a true and correct copy of an email exchange between Plaintiff and me, dated June 11, 2024, in the case entitled Dennis Wilen v. Nadia Heshmati, Case No. 24STRO02204, in which I served my witnesses and exhibits on Plaintiff and Plaintiff responded.

(Wilen Decl. ¶¶ 4-48.)

Although

the Wilen Declaration references video and audio files to be lodged with the

Court, the Court has not received any such audio or video files in relation to the instant motion.[1] Notwithstanding, the Wilen Declaration itself satisfies Defendant's initial prima facie burden of production and persuasion to demonstrate that Wilen did not make the alleged false, defamatory, "deep fake" or "revenge porn" postings online, nor did Wilen contact the Beverly Hills Chamber of Commerce, the Norwegian Chamber of Commerce, the Swedish Chamber of Commerce, the Finnish Consulate, or the Finlandia Foundation.

b. Plaintiff's Evidence

Having met his initial prima facie burdens of production and persuasion to demonstrate that Wilen is not behind the alleged defamatory postings or communications, the burden shifts to Plaintiff to create triable issues of material fact. (See Code Civ. Proc., § 437c, subd. (o)(2); *Union Bank v. Superior Court*, supra, 31 Cal.App.4th at p. 583.)

In opposition, Plaintiff advances copies of the postings themselves, as well as declarations from Plaintiff, Plaintiff's live-in boyfriend Ray Willfor, and Dr. Fari Radfar, Plaintiff's father's spouse, who was previously in a boundary line dispute with the Aaronsons, Plaintiff's next-door neighbor, each speculating and accusing Wilen of being behind the postings. But as demonstrated by the evidentiary rulings above, neither Plaintiff, Willfor, nor Radfar have personal knowledge that Wilen is in fact behind the postings. Nor is there anything about the postings themselves, which are unauthenticated, that conclusively demonstrate who created and/or posted them.

In addition, Plaintiff points to Wilen's unsuccessful anti-SLAPP motion, motion for judgment on the pleadings, and vexatious litigant motion as "evidence" that Plaintiff's claims have merit. But on summary judgment, the burden is on Plaintiff to produce evidence to create a triable issue of material fact. The Court's ruling on prior motions, with different legal and evidentiary standards, is insufficient to meet this burden.

Therefore, Plaintiff has not met her burden of production to create any triable issues of material fact with

respect to Issue 1.[2]

2. ISSUE 2 – THE SIXTH CAUSE OF ACTION FOR ASSAULT AND BATTERY

As to Wilen, the Complaint
alleges:

101.

Defendant Wilen touched or caused to be touched on multiple occasions between 2023 and 2024, pulled a knife on Plaintiff at the parking lot 2323 Roscomare Road, Los Angeles, CA 90077.

(Complaint ¶ 101.)

a. Wilen's Evidence

In support of the motion,
Wilen advances his own declaration, paragraph 40 of which provides, "I have never touched Plaintiff, and did not pull a knife or any other weapon on Plaintiff, at the parking lot at 2323 Roscomare Road or at any other location, as alleged in the Complaint paragraph 101."

(Wilen Decl. ¶ 40.)

Thus, Wilen has met his
initial prima facie burdens of production and persuasion to demonstrate he did not pull a knife on Plaintiff in the parking lot of 2323 Roscomare Road, or at any other location, as alleged in paragraph 101 of the Complaint.

b. Plaintiff's Evidence

In opposition, Plaintiff
advances her own declaration, paragraph 9 of which provides, "In addition Wilen was attacking me with a blue silver knife on multiple occasions in the parking lot of 2323 Roscomare Road, LA CA 90077."

(Heshmati Decl. ¶ 9.)

In supplemental declaration,
Plaintiff also declares, "One day in 2021, the plaintiff was trying to purchase food from a food truck who she has known for years (Arturo's) in bel air on

Roscomare Road, and all of sudden a strange man ran up to me and tried to attack her screaming that she had “turned Cynthia Roan aaronson’s life upside down” and he pulled out a Blue silver knife and tried to stab and attack her. That is how the plaintiff met [...] defendant Wilen.” (Supp. Heshmati Decl. ¶¶ 10-11.)

In reply, Wilen argues that if the alleged attempted stabbing occurred in 2021, it would be time barred, since there is a two-year statute of limitations for assault and battery (Code Civ. Proc., § 335.1) and Plaintiff did not file the Complaint until August 26, 2024, more than two years later.

While that may be so, Plaintiff declares that the alleged stabbing incident in 2021 is when Plaintiff first met Wilen, but there were multiple incidents where Wilen pulled a knife on Plaintiff in the parking lot of 2323 Roscomare Road, which is consistent with the Complaint, which alleges multiple such incidents between 2023 and 2024.

Thus, Plaintiff has met her burden of production to create triable issues of material fact as to Issue 2.

3. ISSUE 4 – CLAIM AND ISSUE PRECLUSION

Wilen argues that Plaintiff’s claims are barred by claim and issue preclusion, having already been litigated and decided in Heshmati v. Wilen, Los Angeles Superior Court Case No. 24STRO00564.

Collateral estoppel has five elements:

First, the issue sought to be precluded from relitigation must be identical to that decided in a former proceeding. Second, this issue must have been actually litigated in the former proceeding. Third, it must have been necessarily decided in the former proceeding. Fourth, the decision in the former proceeding must be final and on the merits. Finally, the party against whom preclusion is sought must be the same as, or in privity with, the party to the former proceeding.

(Lucido v. Superior Court (1990) 51 Cal.3d 335, 341.)

a. Wilen's Evidence

In support, Wilen advances as Exhibit 11, the trial transcript for Case No. 24STRO00564. The standard for that hearing was the heightened "clear and convincing evidence" standard that Wilen harassed Plaintiff for no legitimate purpose. In that hearing, the parties gave testimony about the purported stabbing incidents, before the Court ultimately determined that Plaintiff failed to meet her burden to produce clear and convincing evidence that Wilen engaged in harassment for no legitimate purpose.

By contrast, the default standard of proof for civil actions is preponderance of the evidence. (See, e.g., *In re Marriage of Ettefagh* (2007) 150 Cal.App.4th 1578, 1585.) Further, as discussed above, the issue on summary judgment is whether triable issues of material fact exist. The Court is not rendering any determination on the merits of any claim or affirmative defense similar to any determinations that may follow a trial.

The fact that Plaintiff failed to satisfy the heightened "clear and convincing evidence" standard in connection with the restraining order matter does not automatically mean that Plaintiff will be unable to demonstrate assault and battery by a preponderance of the evidence at trial.

Therefore, the Court does not find Wilen has met his initial burdens of production and persuasion to demonstrate that Plaintiff's claim for assault and battery is collaterally estopped by virtue of the restraining order disposition.

CONCLUSION AND ORDER

For the reasons stated, the Court grants in part Wilen's motion for summary adjudication. Finding Wilen has met his initial burdens of production and persuasion to demonstrate that he was not behind the online postings or the communications underlying the first five causes of action, and that Plaintiff has failed to create any triable issues of material fact, the Court grants summary adjudication of Issue 1 as to the first five causes of action.

Having granted summary adjudication of Issue 1, the Court declines to analyze Issue 3 as moot.

As for Issue 2, Plaintiff has met her burden to create triable issues of material fact as to whether Wilen committed an assault and battery with a knife in 2023-2024. As such, the Court denies summary adjudication of Issue 2 (regarding the sixth cause of action).

Regarding Issue 4, the Court does not find Wilen has met his initial prima facie burdens of production and persuasion to demonstrate that Plaintiff's sixth cause of action is barred by res judicata or collateral estoppel, due to the differing standards of proof. As such, the Court denies summary adjudication of Issue 4 (regarding the sixth cause of action).

Having denied summary adjudication of Issues 2 and 4 (pertaining to the sixth cause of action), the Court also denies Wilen's motion for summary judgment.

Further, the Court will enter the proposed Order lodged on June 23, 2026 in conformity with the ruling.

Wilen shall provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED: September 17, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court

[1] The Courts notes that both parties have lodged previously flash drives with materials which the Court has reviewed. Upon reviewing such flash drives, the Court finds that those materials are not relevant to the instant motion.

[2] Because Issue 1 is dispositive of the third cause of action, the Court does not analyze Issue 3 as moot.